
PETITION FOR A PUBLIC RECORDS ORDER: OFFICE OF THE GOVERNOR

TO	Oregon Department of Justice, Public Records Orders
FROM	Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467
DATE	September 24, 2026
RE	Petition under ORS 192.324(6) and ORS 192.411; Office of Governor Tina Kotek; public records request of September 5, 2026
TESTIMONY	v1.10

To the Attorney General:

I petition for a Public Records Order under ORS 192.324(6) and ORS 192.411. The public body is the Office of Governor Tina Kotek. The request was filed September 5, 2026 and acknowledged September 8, 2026.^{6 7} The custodian answering it is Cameron D. Miles, Government Accountability Attorney.

I petition on two grounds. The Office of the Governor denied my fee waiver on an analysis that is contradicted by the record. And its response of September 22 set a fee of \$572.50 while withholding the means to pay it, which holds the request open indefinitely with the delay recorded against me.

No elected official has claimed a right to withhold any record here. The Office of the Governor has offered the records at a price.

I. THE REQUEST

On September 5, 2026 I asked the Office of the Governor for all records concerning me, and for the records reflecting the receipt, routing, logging, assignment, review, and disposition of the correspondence I have sent that office since November 18, 2025.⁶ I requested a fee waiver under ORS 192.324(5).

The subject is not abstract. On September 3, 2026 the Oregon State Police produced its file on me.⁴ That production shows that on March 3, 2026 an Oregon Parks and Recreation Department emergency manager notified an Oregon State Police captain about me, and gave as his stated reason that I was “now including the Governor as well as our Director.”

My request asks what the Governor’s office did with the correspondence that was given as the reason.

II. THE RESPONSE OF SEPTEMBER 22 IS INCOMPLETE

On September 22, 2026 at 5:29 PM, Mr. Miles denied the fee waiver, estimated the cost at \$572.50, and wrote: “If you decide to pay the \$572.50, we will send you instructions on submitting payment.”¹

I accepted at 5:31 PM, two minutes later, and asked for the instructions.² I asked again on the morning of September 23.³ They have not been sent.

ORS 192.329(3) suspends a public body’s obligation to complete its response for as long as the fee is unpaid. The Office of the Governor controls whether I can pay. Naming a price, promising instructions, and then not sending them suspends the office’s own obligation for as long as the office chooses, and does so in a form that reads as the requester’s delay. The amount was known when the letter was written. The payment instructions belonged in it.

III. THE FEE WAIVER DENIAL

Mr. Miles applied five factors and found that none weighed in favor of a waiver.¹ The record answers each one.

The first factor is the requester's identity. His letter states the request “relates to a personal, rather than a public interest.” The request asks what a public office did with correspondence sent to it, during the period in which that correspondence was given as the reason a state agency contacted the police.⁴ That is the conduct of public offices. On August 24, 2025 I asked the Director of the Oregon Parks and Recreation Department for five protections for every volunteer, and asked for nothing for myself.⁵ Who is asking does not convert a record of state conduct into a private one.

The second factor is the purpose. His letter states that “the use of records for a personal issue does not weigh in favor of the request being in the public interest.” My purpose is publication. Every record any institution has produced to me is published in full at a permanent public address, 518 documents in all. The Oregon State Police produced its file on September 3, 2026, and I published it that day, complete, as received.⁴

The third factor is the character of the information. His letter states that my form “does not explain how the release of records is in the public interest other than by stating a general interest in transparency.” My request explains it. It asks for the receipt, routing, logging, assignment, review, and disposition of my correspondence to the Office of the Governor.⁶ Whether writing to the Governor's office precedes a citizen being referred to the state police is not a general interest in transparency.

The fourth factor is whether the records are already in the public domain. His letter states that the requester “has not demonstrated that this factor weighs in favor of granting a fee waiver.” This factor asks whether the public already holds the records. It does not. Records the public does not have are the only records a disclosure can add anything to. As applied, the office's own non-publication of these records is counted against the person asking the office to publish them.

The fifth factor is the ability to disseminate. His letter states that the requester “has not demonstrated the ability to disseminate the public records but merely stated that he can post it on a website.” The Office of the Governor's own correspondence was published in the archive before that sentence was written. My request to the office was published September 5, 2026, the day I filed it.⁶ The office's acknowledgment was published September 8, 2026, the day it was sent and copied to Mr. Miles.⁷ On September 9, 2026 I wrote to Mr. Miles, and to the records officers of two other agencies, that every pending request is tracked at a public address, and that page was published the same day.⁸ The sentence was written thirteen days after that notice.

The archive is built in the open. Every page of it is a timestamped commit in a public repository at <https://github.com/rswfire/rswfire.oprd>, and each publication date above is linked in the sources to the commit that made it.

IV. RELIEF REQUESTED

I ask the Attorney General to order the Office of the Governor to:

1. Provide instructions for paying the \$572.50 it has assessed, so that the suspension under ORS 192.329(3) turns on my payment rather than on the office's silence.
2. Reconsider the fee waiver under ORS 192.324(5) against the record set out above, and state the basis for any denial in terms of the factors as the record answers them.
3. Complete its response to the September 5, 2026 request.

I am not asking the Attorney General to make any finding about the underlying events. I am asking that a public records request be answered as the statute requires, and that a fee waiver be decided on the record rather than on a reading of a form.

Every document cited is published and linked below. I can provide any of them as a separate file on request.

Respectfully,

Robert Samuel White

Sources

1. [The fee waiver is denied: \\$572.50, September 22, 2026.](#)
2. [I will pay it. Send the instructions., September 22, 2026.](#)
3. [You named a price, and I accepted it, September 23, 2026.](#)
4. [The records are produced, September 3, 2026.](#) The full PR27478 production of the Oregon State Police.
5. [An open letter to the Director, August 24, 2025.](#) The five protections, requested for every volunteer.
6. [Public records request to the Office of the Governor, September 5, 2026.](#) Published the same day: [commit cd4d61a, September 5, 2026, 2:27 PM PT.](#)
7. [The Governor's office begins gathering records, September 8, 2026.](#) Published the same day: [commit 80bce41, September 8, 2026, 12:35 PM PT.](#)
8. [Notice: the requests are now tracked publicly, September 9, 2026.](#) The tracker page: [commit eed812d, September 9, 2026, 9:23 AM PT.](#)
The notice itself: [commit 26cd017, September 9, 2026, 10:03 AM PT.](#)